

HOUSE No.

The Commonwealth of Massachusetts

PRESENTED BY:

Steven George Xiarhos

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to penalties for assault and battery on a police officer.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>10/8/2025</i>
<i>Marcus S. Vaughn</i>	<i>9th Norfolk</i>	<i>10/11/2025</i>
<i>Norman J. Orrall</i>	<i>12th Bristol</i>	<i>10/11/2025</i>
<i>Todd M. Smola</i>	<i>1st Hampden</i>	<i>10/11/2025</i>
<i>Michael J. Soter</i>	<i>8th Worcester</i>	<i>10/11/2025</i>
<i>Joseph D. McKenna</i>	<i>18th Worcester</i>	<i>10/11/2025</i>
<i>Bradley H. Jones, Jr.</i>	<i>20th Middlesex</i>	<i>10/11/2025</i>
<i>Steven S. Howitt</i>	<i>4th Bristol</i>	<i>10/14/2025</i>
<i>Kelly A. Dooner</i>	<i>Third Bristol and Plymouth</i>	<i>10/14/2025</i>
<i>Donald H. Wong</i>	<i>9th Essex</i>	<i>10/21/2025</i>

HOUSE No.

By Representative Xiarhos of Barnstable, a petition (subject to Joint Rule 12) of Steven George Xiarhos and others relative to penalties for assault and battery on a police officer. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to penalties for assault and battery on a police officer.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 265 of the General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by striking out section 13D and inserting in place thereof the following
3 section:-

4 SECTION 13D Assault and Battery Upon a Police Officer

5 Whoever commits an assault and battery upon a police officer, as defined in section 1 of
6 chapter 90C, who is engaged in the performance of their duties at the time of such assault and
7 battery, shall be punished by imprisonment in the state prison for not more than 5 years or by
8 imprisonment in a house of correction for not more than 2½ years, or by a fine of not more than
9 \$10,000, or by both such fine and imprisonment.

10 No sentence imposed under this section shall be suspended, nor shall any person
11 convicted hereunder be eligible for probation, parole, furlough, or work release until such person
12 shall have served at least 90 days of said sentence.

13 A prosecution commenced under this section shall not be continued without a finding nor
14 placed on file.

15 For purposes of this section, “police officer” shall include any constable, sheriff, deputy
16 sheriff, state police trooper, municipal police officer, environmental police officer, university or
17 college police officer, or any other law enforcement officer empowered to make arrests under the
18 laws of the commonwealth.